

Court No. - 21

Case :- WRIT - C No. - 24779 of 2024

Petitioner :- Birendra Singh Yadav

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And 2 Others

Counsel for Petitioner :- Deepak Kumar Pandey, Vinay Kumar Mishra

Counsel for Respondent :- Gaurav Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. The instant petition has been filed praying for quashing of the checking report dated 15.07.2022 and notice of provisional assessment dated 25.08.2022 and for a direction to respondent no.2 to withdraw the notice of provisional assessment.

2. Learned counsel for the petitioner tried to show that the checking report is incorrect.

3. The petitioner has already filed objection to the impugned provisional assessment order. The same has not been decided so far. Therefore, there arises no occasion to interfere with the notice of provisional assessment or to proceed to adjudicate as to whether checking report is correct or not.

4. At this stage, learned counsel for the petitioner submits that the petitioner be granted liberty to supplement his objections filed in response to notice of provisional assessment.

5. Having regard to the said prayer, we grant him two weeks further time to file supplementary objection in response to the notice of provisional assessment. Respondent no.2 while making final assessment will follow the procedure prescribed under the Electricity Supply Code, 2005. He will also take into consideration the supplementary objection, as may be filed by the petitioner within two weeks from today.

6. **Disposed of** accordingly.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.7.2024

Ankit.